

1 ENGROSSED HOUSE
2 BILL NO. 4363

By: Moore of the House

3 and

4 Gollihare of the Senate

5
6
7 An Act relating to higher education; amending 70 O.S.
8 2021, Section 4663, as amended by Section 1, Chapter
9 230, O.S.L. 2024 (70 O.S. Supp. 2025, Section 4663),
10 which relates to the board of trustees for Oklahoma
11 State University/Tulsa; striking Board of Trustees
12 authorization to promulgate rules and enact policies
to govern the processes and procedures of the Board;
deleting obsolete transition language; striking
process for selection of the president of Oklahoma
State University/Tulsa; and providing an effective
date.

13
14
15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 70 O.S. 2021, Section 4663, as
17 amended by Section 1, Chapter 230, O.S.L. 2024 (70 O.S. Supp. 2025,
18 Section 4663), is amended to read as follows:

19 Section 4663. A. On January 1, 1999, there shall be created
20 the Board of Trustees for Oklahoma State University/Tulsa which
21 shall consist of seven members who reside in Tulsa County or
22 contiguous counties, one member of the Board of Regents for the
23 Oklahoma Agricultural and Mechanical Colleges (A&M Board) who shall
24 reside in the First Congressional District, and one member who shall

1 be appointed by the chair of the A&M Board. The member of the A&M
2 Board and the member appointed by the chair of the A&M Board shall
3 serve as voting, ex officio members. For purposes of serving on the
4 Board of Trustees, the member of the A&M Board and the member
5 appointed by the chair of the A&M Board who are appointed to the
6 Board of Trustees shall not be subject to the dual office holding
7 restrictions in Section 6 of Title 51 of the Oklahoma Statutes. The
8 Governor shall appoint the other members of the Board of Trustees
9 with the advice and consent of the Senate. The members shall be
10 appointed to numbered positions with staggered terms to expire as
11 provided in this section. Successors to the initial board members
12 shall serve seven-year terms that shall expire on June 30 of the
13 seventh year following appointment. Vacancies on the Board shall be
14 filled for the unexpired term by the Governor with the advice and
15 consent of the Senate. The member of the A&M Board who resides in
16 the First Congressional District shall hold position number eight.
17 The member appointed by the chair of the A&M Board shall hold
18 position number nine. The numbered positions and terms shall be as
19 follows:

20 1. Position No. 1: The term of office of one member shall
21 expire on the 30th day of June, 2000, and each seven (7) years
22 thereafter;

1 2. Position No. 2: The term of office of one member shall
2 expire on the 30th day of June, 2001, and each seven (7) years
3 thereafter;

4 3. Position No. 3: The term of office of one member shall
5 expire on the 30th day of June, 2002, and each seven (7) years
6 thereafter;

7 4. Position No. 4: The term of office of one member shall
8 expire on the 30th day of June, 2003, and each seven (7) years
9 thereafter;

10 5. Position No. 5: The term of office of one member shall
11 expire on the 30th day of June, 2004, and each seven (7) years
12 thereafter;

13 6. Position No. 6: The term of office of one member shall
14 expire on the 30th day of June, 2005, and each seven (7) years
15 thereafter;

16 7. Position No. 7: The term of office of one member shall
17 expire on the 30th day of June, 2006, and each seven (7) years
18 thereafter;

19 8. Position No. 8: The term of office shall coincide with the
20 member's term on the A&M Board; and

21 9. Position No. 9: The term of office shall be at the
22 direction of the chair of the A&M Board.

23 B. The Board of Trustees shall be a body corporate and shall
24 adopt and use an official seal. The Board shall elect a chair, vice

1 chair, and secretary annually, each of whom shall serve for a term
2 of one fiscal year and until a successor is elected and qualified,
3 and who shall perform such duties as the Board directs. The Board
4 shall adopt rules which it deems necessary for the operation of the
5 Board and the discharge of its duties and shall cause the minutes of
6 all meetings to be kept. The Board shall comply with the Oklahoma
7 Open Meeting Act and the Oklahoma Open Records Act.

8 C. The Board of Trustees for Oklahoma State University/Tulsa
9 may be authorized by the A&M Board to supervise and manage the
10 campus of Oklahoma State University/Tulsa and perform other
11 functions as necessary. ~~The Board of Trustees shall promulgate~~
12 ~~rules and enact policies to govern the processes and procedures of~~
13 ~~the Board.~~ It is the intent of the Legislature that in the
14 interests of immediate responsiveness to the needs of students,
15 employees, and the business community that the decision or approval
16 process be expedited.

17 D. On or after January 1, 1999, the A&M Board may assign and
18 delineate roles and responsibilities for the Board of Trustees for
19 Oklahoma State University/Tulsa. Such responsibilities may include,
20 but are not limited to, student services, facility operations,
21 student financial services, budget preparations, endowed chairs at
22 Oklahoma State University/Tulsa, and administrative operations as
23 specified by the A&M Board.

1 E. The Board of Trustees shall establish the usual and
2 customary accounts established by higher education institutions
3 within the Office of Management and Enterprise Services necessary to
4 carry out its duties.

5 ~~F. Until July 1, 2001, during the transition and development of~~
6 ~~Oklahoma State University/Tulsa, acting on behalf of the Board of~~
7 ~~Trustees for Oklahoma State University/Tulsa, Oklahoma State~~
8 ~~University is authorized and directed to negotiate contracts with~~
9 ~~institutions for courses and degree programs of study approved by~~
10 ~~the Oklahoma State Regents for Higher Education, as necessary to~~
11 ~~meet the higher education needs for the Tulsa metropolitan area.~~
12 ~~The number of degree programs offered by Northeastern State~~
13 ~~University and Langston University shall not be diminished or~~
14 ~~duplicated.~~

15 ~~G. The president of Oklahoma State University/Tulsa shall be~~
16 ~~selected by the Board of Regents for the Oklahoma Agricultural and~~
17 ~~Mechanical Colleges after completion of a search process as set~~
18 ~~forth in this subsection. The A&M Board shall appoint at least two~~
19 ~~of its members, one of whom must reside in the First Congressional~~
20 ~~District, and the Board of Trustees shall appoint at least two of~~
21 ~~its members to a search committee. The president of Oklahoma State~~
22 ~~University may appoint other representatives of faculty, staff, and~~
23 ~~students to the search committee. The president of Oklahoma State~~

1 ~~University shall recommend a candidate in consultation with the~~
2 ~~search committee to the Board of Trustees and the A&M Board.~~

3 SECTION 2. This act shall become effective November 1, 2026.

4 Passed the House of Representatives the 23rd day of March, 2026.

5
6 _____
7 Presiding Officer of the House
8 of Representatives

9 Passed the Senate the ____ day of _____, 2026.

10
11 _____
12 Presiding Officer of the Senate
13
14
15
16
17
18
19
20
21
22
23
24